



July 7, 2025

Senator Thomas Umberg
Chair of the Senate Judiciary Committee
Capitol Office, 1021 O Street, Suite 7510
Sacramento, CA 95814

Senator Roger Niello
Vice Chair of the Senate Judiciary Committee
Capitol Office, 1021 O Street, Suite 7110
Sacramento, CA 95814

Assembly Member Christopher Ward
California State Assembly
Capitol Office, 1021 O Street, Suite 6350
Sacramento, CA 95814

RE: Ad Trade Letter in Opposition to California AB 322

Dear Chair Umberg, Vice Chair Niello, and Assembly Member Ward:

On behalf of the advertising industry, we respectfully oppose AB 322, and we offer this letter to express our concerns about this legislation.¹ We and the companies we represent, many of whom do substantial business in California, strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and industry policies. AB 322 would unreasonably limit the collection, use, and transfer of precise geolocation information in ways that would inhibit Californians from receiving desired advertising and even critical messaging and services. The majority of states that regulate precise geolocation data require consent for the collection and processing of such data. The California Consumer Privacy Act requires businesses to provide the ability to opt out of use of such data. Instead of aligning California's law with the majority of states, AB 322 would severely limit the processing of such data and flatly ban the sale of such data, thereby harming Californians. The bill would also create yet another required consumer notice under California law that would add to the notice fatigue Californians are already experiencing. The Senate Judiciary Committee ("Committee") should decline to advance the bill any further in the legislative process.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of responsible companies across the country that make up and support the digital economy. These companies range from small businesses to household brands, advertising agencies, publishers, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet and the digital economy, which accounted for 18 percent of total U.S. gross domestic product ("GDP") in 2024.² By one estimate, over 1.8 million jobs in California are related to the ad-subsidized Internet.³ Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy

¹ California AB 322 (2025-2026 Reg. Sess.), located [here](#).

² John Deighton and Leora Kornfeld, *Measuring the Digital Economy*, INTERACTIVE ADVERTISING BUREAU, 8 (April, 2025), located at https://www.iab.com/wp-content/uploads/2025/04/Measuring-the-Digital-Economy_April_29.pdf.

³ *Id.* at 130-132.



and controls. We would welcome the opportunity to engage with the Committee further on the non-exhaustive list of issues with the bill that we discuss in this letter.

I. AB 322 is misaligned with other states’ treatment of precise geolocation information and should be amended to permit precise geolocation information processing with Californians’ consent.

AB 322 states that a business that collects precise geolocation information shall not “collect or process precise geolocation information more than necessary to provide the goods or services requested by the consumer.”⁴ The bill would also flatly prohibit a business from selling, trading, or leasing precise geolocation information to a third party.⁵ These broad limitations are out-of-step with most other state privacy laws that allow consumers to consent to the processing of precise geolocation information.⁶ Californians should have the right to decide for themselves if they want to share location data in ways that benefit them. AB 322 would deprive consumers of this choice and the benefits that flow from the use of this data. If California adopts AB 322, California consumers will be unable to access location-based services that consumers in other states have the freedom to consent to receive. Instead of adopting a new and exceedingly limiting approach to precise geolocation information, California should empower consumers to consent to businesses’ processing of such information if they desire to receive products and services that are powered by uses of such data.

II. AB 322 would unreasonably limit the processing of precise geolocation information to the detriment of California consumers and businesses.

The limitations on precise geolocation information collection and processing in AB 322 would impede consumers from receiving advertising and beneficial services. For example, the collection and use of precise geolocation information allows individuals to receive advertising and communications in the right time and at the right place. Precise geolocation information is an integral component of advertising personalization and marketing that allows companies to reach consumers with relevant content and ads, enabling consumers to learn about goods and services that are near to them. This benefit is also especially meaningful for California’s small and medium-sized businesses, most of whom would not benefit from any exemption because they need their larger partners’ reach to attract and grow their own businesses. Without the ability to collect and use precise geolocation information for advertising purposes, businesses will have a more difficult time, and face higher costs, reaching individuals with relevant marketing, and consumers will not be alerted to products and services they desire that are near to them.

In addition, AB 322 would have unintended downstream effects on vital services that benefit consumers. Precise geolocation information powers important emergency notices, particularly AMBER alerts and severe weather notices, allowing these notices to be immediately displayed to

⁴ AB 322 at Section 1, § 1798.122(b)(1).

⁵ *Id.* at § 1798.122(b)(3).

⁶ See, e.g., Conn. Gen. Stat. § 42-520(a)(4); Colo. Rev. Stat. § 6-1-1308(7) (as amended by Colorado SB 25-276 (75th Gen. Assemb., 1st Reg. Sess.), located [here](#)).

users in the impacted area on any device they are using.⁷ Because these emergency services depend on “sales” of precise geolocation information to third parties, and constitute processing that is not “necessary” to provide goods or services “requested by a consumer,” AB 322 would severely hinder their availability in California. If AB 322 is enacted, Californians could lose access to emergency alerts for wildfires or other community emergencies. An exemption for these uses of precise geolocation information would not solve this problem. Even if the Committee were to add an exemption to the bill for these emergency uses, the bill’s other strict limitations on precise geolocation information collection and sale would make this data lose much of its utility in the marketplace. As a result, this data would be less likely to be collected and used by entities overall, making it less procurable for use for emergency purposes. If AB 322 is enacted, Californians would lose access to important, real-time alerts, which rely on the disclosure and processing of precise geolocation information.

Precise geolocation information also enables effective fraud prevention to protect consumers and businesses. Financial institutions, retailers, and others rely on anti-fraud services that include precise geolocation information *processed and provided by third parties*. Third party anti-fraud and identity protection services leverage precise geolocation information to flag suspicious behavior and protect vulnerable communities. For example, companies can more easily detect credit card theft or fraud if their third-party partners have access to precise geolocation information showing that a consumer is not in the location where a purchase is being made. The bill’s exception for use of precise geolocation information for anti-fraud services does not ameliorate this issue because the exception is limited to a business’s own collection and use of precise geolocation information to combat fraud,⁸ when in many instances, businesses leverage third parties to provide anti-fraud services using precise geolocation data. Furthermore, the bill’s requirements would devalue precise geolocation information in the marketplace. Entities would thus collect and use precise geolocation information less, making this critical data set less available for this important anti-fraud and identity protection use. If passed, AB 322 would impede the collection and use of precise geolocation information for anti-fraud and identity theft purposes that benefit Californians.

III. AB 322 would add yet another notice requirement to California privacy law, inundating consumers with unnecessary notices and exacerbating notice fatigue.

AB 322 would require businesses to prominently display a notice related to precise geolocation information practices “when precise geolocation information is being collected.”⁹ Many of the disclosures that would be required by the bill, such as the fact that precise geolocation information is being collected, the name of the business, and contact information for the business, are already required to be covered in consumer privacy policies.¹⁰ Adding yet another notice

⁷ See, e.g., *Federation for Internet Alerts*, located [here](#) (describing a partnership between FIA and the National Center for Missing and Exploited Children (NCMEC) that leverages the same technology used to deliver advertising and marketing messages to issue and maximize the effectiveness of alerts for emergencies such as child abductions, tornado warnings, and other hazards).

⁸ AB 322 at Section 1, § 1798.122(b)(1)(B).

⁹ *Id.* at § 1798.122(a)

¹⁰ Cal. Civ. Code § 1798.130(a)(5); Cal. Code Regs. tit. 11, § 7011.



requirement, on top of the privacy policies and other notices businesses must provide related to precise geolocation information, would inundate Californians with notices without providing meaningful privacy benefits and would overwhelm businesses with drafting additional privacy disclosures. The bill's notice requirements would also interrupt and frustrate consumers as they traverse the Internet. The purported benefit of such a notice would be minimal at best. Instead of creating a new, additional notice requirement under California law, the Committee should amend the bill so it aligns with the consent requirements for precise geolocation information processing in other states. Any notices specific to precise geolocation information practices should be permitted to be contained in the privacy policy, which consumers are accustomed to accessing to understand a business's data practices.

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We ask you to refrain from advancing AB 322 further in the legislative process, as its provisions would harm both consumers and businesses alike. Thank you for your consideration of this letter.

Sincerely,

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